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File No.: EXP202204270

RESOLUTION OF FILE OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On March 12, 2022, a complaint was filed with entry registration number REGAGE22e00006670735, before the Spanish Agency for Data Protection, against an unidentified company.

The reasons for the complaint are as follows:

The complainant claims to have received targeted postal advertising, suspecting that the responsible entity has obtained their personal data fraudulently due to the hacking of the financial entity LEDGER, of which they were affected (a circumstance that has already been reported previously to the AEPD in other writings related to incessant phone calls).

The received postal advertising refers to three internet domains: "HEX.COM", "PULSECHAIN.COM", and "PULSEX.COM", which market various financial services based on the exploitation of cryptocurrency markets.

Along with the complaint, images of the envelope (containing a numerical code and a P.O. Box No. XXXX, C.P. 41015 Sevilla) and the advertising content are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to WWW.HEX.COM, WWW.PULSECHAIN.COM, and WWW.PULSEX.COM, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by certified postal mail, was returned to the sender by the Postal Service due to an incorrect address on May 16, 2022.

No response has been received to this forwarding letter.

THIRD: On June 12, 2022, in accordance with Article 65 of the LOPDGDD, the admission of the filed complaint for processing is communicated.

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FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

INVESTIGATED ENTITIES

During the present proceedings, the following entities have been investigated:

B2C EUROPE SPAIN ECOMMERCE LOGISTICS S.L. with address at Avda. de Suiza, 18-20 - 28821 COSLADA (MADRID).

VIASER MARKETING S.L., with NIF B90309394, and with address at C/ CARTEROS, 6 Blq 2 8ªA - 41008 SEVILLA (SEVILLA).

WWW.HEX.COM, WWW.PULSECHAIN.COM, and WWW.PULSEX.COM.

RESULT OF THE INVESTIGATIVE ACTIONS

No responsible parties are identified on the websites referred to, so inquiries are made in Whois.

Hex.com: Registrar agent GoDaddy. It is inferred that the site was registered from the USA and the servers are also hosted in the USA.

Pulsechain.com and pulsesex.com: Registrar agent NameCheap. It is inferred that both websites were registered from Iceland and the servers are hosted in the USA.

The Data Protection Officer of the State-owned Company Correos y Telégrafos, S.A., S.M.E. informs that in the case of urban branches, the number of P.O. Boxes always begins with the branch number followed by 3 additional digits.

For this reason, given the envelope provided by the complainant, P.O. Box XXXXX belongs to branch 16 of Sevilla.

P.O. Box XXXXX of 41015 Sevilla is registered under the name of VIASER MARKETING S.L.

In response to the information request from the Agency's inspectors, representatives of Viaser Marketing S.L. state that they have not had access to the origin or processing of the complainant's data. This company limits itself to depositing the shipments with Correos, through a contract for Postal and Telegraphic Services between the State-owned Company Correos y Telégrafos, S.A. and Viaser Marketing S.L.

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In view of the envelope provided by the claimant, it is indicated that these shipments are addressed and prepaid with the corresponding post office box from the company B2C EUROPE SPAIN ECOMMERCE LOGISTICS S.L.

On March 17, 2023, information regarding the origin of the claimant's data was requested from the entity B2C EUROPE SPAIN ECOMMERCE LOGISTICS S.L., having been delivered to the entity on March 29, 2023, without obtaining a response.

On April 12, 2021, the phone number for B2C EUROPE was located on the Internet.

The number ***TELÉFONO.1 was called, and they informed that the entity has changed its name and that they do not know if it is still active, providing an email address to send a request for information ***EMAIL.1.

The request was reiterated to this email address, receiving a response on April 24, 2023, which, in summary, states that B2C is a Spanish company whose corporate purpose is the contracting or provision, through its own or third-party vehicles, of public transport services of all kinds of goods, postal logistics services, and shipments, regardless of the form or means by which it is carried out, with national and international scope.

It adds that it is unaware of the origin of the data since the activity carried out by the company is postal transport. The management performed is solely the reception of packaged goods from European clients (goods that are already labeled by them and with the corresponding postage) to deposit it in the facilities of VIASER MARKETING, which, apparently, is the final distributor of the shipments.

It also informs that it has no direct contact with the publishing or advertising company and that B2C does not carry out any processing of personal data of this type of shipments because they simply do not know the data contained inside the packaging, and since no processing of that data is carried out, there is no storage in their files, and there is no record or documentation of data that is inside the distributed goods.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Advertising Exclusion Systems

Article 23 of the LOPDGDD, under the heading "Advertising Exclusion Systems," establishes:

"1. The processing of personal data aimed at preventing the sending of commercial communications to those who have expressed their refusal or opposition to receiving them shall be lawful.

To this end, information systems, general or sectoral, may be created, which will only include the data necessary to identify the affected individuals. These systems may also include preference services, through which the affected individuals limit the receipt of commercial communications to those coming from certain companies.

2. The entities responsible for the advertising exclusion systems shall notify the competent supervisory authority of their creation, their general or sectoral nature, as well as the manner in which the affected individuals can join them and, where appropriate, assert their preferences.

The competent supervisory authority shall publish on its electronic headquarters a list of such systems that have been communicated to it, incorporating the information mentioned in the previous paragraph. To this end, the competent supervisory authority to which the creation of the system has been communicated shall inform the other supervisory authorities for publication by all of them.

3. When an affected individual expresses to a responsible party their wish that their data not be processed for the sending of commercial communications, they must inform them of the existing advertising exclusion systems, which may refer to the information published by the competent supervisory authority.

4. Those intending to carry out direct marketing communications must first consult the advertising exclusion systems that may affect their action, excluding from processing the data of the affected individuals who have expressed their opposition or refusal to it. For these purposes, to consider the previous obligation fulfilled, it will be sufficient to consult the exclusion systems included in the list published by the competent supervisory authority.

It will not be necessary to carry out the consultation referred to in the previous paragraph when the affected individual has provided, in accordance with the provisions of this organic law, their consent to receive the communication from the party intending to carry it out."

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III

Conclusion

In this case, a complaint is made regarding the receipt of targeted postal advertising, suspecting that the responsible entity has obtained personal data fraudulently.

The investigative actions carried out have not allowed for the identification of the entity responsible for including the data that appears on the envelope provided by the complainant, nor the origin of such data.

On the other hand, the complaining party does not claim to be registered in an advertising exclusion system.

Consequently, as it has not been possible to determine the responsibility for the processing nor the origin of the data, the necessary conditions for attributing responsibility are not met.

Therefore, based on what is indicated in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

Thus, as it has also not been possible to attribute responsibility for the processing as indicated, the Director of the Spanish Agency for Data Protection DECIDES:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to B2C EUROPE SPAIN ECOMMERCE LOGISTICS S.L., VIASER MARKETING S.L., and WWW.HEX.COM, and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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